

		Plaintiff both proceeded to trial. Moving Party made no mention of a continuance request nor that he could not go forward for any reason. To the contrary, Moving Party fully engaged in the proceedings, giving an opening statement, cross-examining the opposing witness, testifying himself and giving a closing statement. Moving Party never stated that he could not proceed or needed a continuance of the trial. After the Court ruled against the Moving Party at the conclusion of the trial, the Moving Party waited over two months to file this Motion based on health issues or concerns that were not presented to the Court on December 15, 2025. Accordingly, the motion is denied. Plaintiff is ordered to submit a Proposed Judgment no later than June 12, 2026. Clerk is ordered to give notice
5	Hill vs. City of Fountain Valley 2024-01386471	Motion for Summary Judgment and/or Adjudication Defendants City of Fountain Valley, James Cataline, Stuart Chase, and Gannon Kelly's Motion for Summary Judgment is DENIED. As an initial matter, Moving Defendants' separate statement in support of the motion does not comply with the requirements of Cal. Rules of Court, Rule 3.1350, subd. (d)(3), which requires that "[t]he statement must state in numerical sequence the undisputed material facts in the first column followed by the evidence that establishes those undisputed facts in that same column. Citation to the evidence in support of each material fact must include reference to the exhibit, title, page, and line numbers." Here, Moving Defendants have failed to include any

		citation to evidence in support of any of the purportedly undisputed facts upon which their motion relies. This defect has made it exceedingly time consuming to assess the evidentiary basis for Defendants’ motion. It is within the court’s discretion to DENY a motion for summary judgment for failure to comply with Cal. Rules of Court, Rule 3.1350. (See <i>Truong v. Glasser</i> (2009) 181 Cal.App.4th 102, 118 [“[T]he court’s power to deny summary judgment on the basis of failure to comply with California Rules of Court, rule 3.1350 is discretionary”].) Since Plaintiff has been able to substantively respond to the motion and Moving Defendants’ deficient separate statement, the court will proceed on the merits of the motion. A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc. (“CCP”), § 437c(p)(2).) The scope of this burden is determined by the allegations of the plaintiff’s complaint. (<i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381–82 [pleadings serve as the outer measure of materiality in a summary judgment motion]; <i>580 Folsom Associates v. Prometheus Development Co.</i> (1990) 223 Cal.App.3d 1, 18–19 [respondent only required to defeat allegations reasonably contained in the complaint].) If a plaintiff has pleaded several theories, the defendant has the burden of demonstrating there are no material facts requiring trial on any of them. (<i>Carlsen v. Koivumaki</i> (2014) 227 Cal.App.4th 879, 889.) A cause of action “cannot be established” if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. (<i>Brantley v. Pisaro</i>(1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action “cannot be established” by submitting evidence—such as discovery admissions and responses—that the plaintiff does not have and cannot reasonably obtain
--	--	---

	evidence to establish an essential element of his cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i> (1995) 25 Cal.4th at 854-55; see also <i>Union Bank v. Superior Court</i> (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff's lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; <i>Scheiding v. Dinwiddie Const. Co.</i> (1999) 69 Cal.App.4th 64, 80-81 [finding Union Bank rule only applies where discovery requests are broad enough to elicit all such information]; <i>Weber v. John Crane, Inc.</i> (2006) 143 Cal.App.4th 1433, 1441-42 [same].) Once the moving party meets that burden, the burden shifts to the party opposing MSJ to show, by reference to specific facts, the existence of a triable issue as to that affirmative defense or cause of action. (<i>Id.</i>; <i>Villacres v. ABM Industries, Inc.</i> (2010) 189 Cal.App.4th 562, 575.) To meet this burden, the opposing party must present substantial and admissible evidence creating a triable issue. (<i>Sangster v. Paetkau</i> (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (<i>Doe v. Salesian Society</i> (2008) 159 Cal.App.4th 474, 481; <i>Bushling v. Fremont Med. Center</i> (2004) 117 Cal.App.4th 493, 510.) The moving party's papers are to be strictly construed, while the opposing party's papers are to be liberally construed. (<i>Committee to Save Beverly Highland Homes Ass'n v. Beverly Highland</i> (2001) 92 Cal.App.4th 1247, 1260.) Here, Plaintiff alleges a single cause of action for false arrest. To state a cause of action for false arrest (a variation of the tort of false imprisonment), a plaintiff must allege three elements: (1) the defendant arrested the plaintiff without a warrant, (2) the plaintiff was harmed, and (3) the defendant's conduct was a substantial factor in causing the harm. (<i>Carcamo v. Los Angeles County Sheriff's Dept.</i> (2021) 68 Cal.App.5th 608, 616; see
--	---

		CACI No. 1401; see also <i>Asgari v. City of Los Angeles</i> (1997) 15 Cal.4th 744, 753, fn. 3 [false arrest and false imprisonment are not separate torts; a false arrest is but one way of committing a false imprisonment].) If the plaintiff ultimately proves these elements, the defendant has the burden of persuasion to prove the arrest was justified. (<i>Carcamo</i>, supra., 68 Cal.App.5th at 616; <i>Levin v. United Air Lines, Inc.</i> (2008) 158 Cal.App.4th 1002, 1018; see CACI No. 1402 [affirmative defense, probable cause to arrest].) A warrantless arrest may be justified where there is reasonable cause to believe the person arrested has committed a misdemeanor in the presence of the arresting officer. (See <i>Levin</i> supra. 158 Cal.App.4th, at 1017-1018; <i>People v. Donaldson</i> (1995) 36 Cal.App.4th 532, 537; Pen. Code, § 836, subd. (a)(1).) Reasonable cause to arrest exists when the facts known to the arresting officer would lead a reasonable person to have a strong suspicion of the arrestee's guilt. [citations] This is an objective standard. (<i>Id.</i> at 1018.) "If the facts that gave rise to the arrest are undisputed, the issue of probable cause is a question of law for the trial court." (<i>Id.</i> at 1018.) Thus, for Moving Defendants to meet their burden as a party moving for summary judgment, they must either identify undisputed facts that affirmatively negate one or more elements of Plaintiff's claim for false arrest, demonstrate that Plaintiff lacks sufficient evidence to establish one or more elements of Plaintiff's cause of action for false arrest, or identify undisputed facts that show the arrest was justified. Here, Moving Defendants argue that the arrest was justified because the arresting officers had reasonable cause to believe Plaintiff had violated Pen. Code §69 in their presence. Pen. Code §69, subd. (a) provides: "Every person who attempts, by means of any threat or violence, to deter or prevent an executive officer from performing any duty imposed upon the officer by law, or who knowingly resists, by the use of force or
--	--	--

		violence, the officer, in the performance of his or her duty, is punishable by a fine not exceeding ten thousand dollars (\$10,000), or by imprisonment pursuant to subdivision (h) of Section 1170, or in a county jail not exceeding one year, or by both such fine and imprisonment." Moving Defendants contend that the undisputed facts show the arresting officers had reasonable cause to believe Plaintiff had violated Pen. Code §69. (See SSUMF Nos. 24-28 [Plaintiff closed door forcefully, causing Officer Kelly's foot to become forcibly displaced from the threshold]; 30 [Plaintiff "locked his arms, stiffened his body, and actively prevented officers from securing his arms..."].) Moving Defendant has provided Ring Camera footage of the incident, recordings of conversations between the arresting officers and various individuals involved in the incident, and declarations of the arresting officers to establish these facts. While the separate statement fails to precisely identify what evidence Moving Defendants contend establishes these facts, the Court finds that these facts are sufficient to satisfy Moving Defendants' initial burden on summary judgment. Plaintiff, however, has met his shifted burden to show that there is a triable issue of fact as to whether the arresting officers had reasonable cause to suspect Plaintiff had violated Pen. Code §69. Namely, Plaintiff has shown that Moving Defendants' SSUMF Nos. 24, 25, 26, 27, 28, and 30 are all disputed. (See Plaintiff's Compendium of Evidence Exhibits L and Y [video recordings of the interaction Moving Defendant argues gave the arresting officers reasonable cause] and Plaintiff's Declaration ¶¶27-38.) The circumstances giving rise to Plaintiff's arrest are far from undisputed. The question of whether the arresting officers had reasonable cause to believe Plaintiff had violated Pen. Code §69 is a question that must be determined by the jury. Moving Defendants' argument that summary judgment is warranted based upon the
--	--	---

		contention they are entitled to statutory immunity under Pen. Code §847, subd. (b) is not persuasive. Pen. Code §847, subd. (b) provides "There shall be no civil liability on the part of, and no cause of action shall arise against, any peace officer or federal criminal investigator or law enforcement officer described in subdivision (a) or (d) of Section 830.8, acting within the scope of his or her authority, for false arrest or false imprisonment arising out of any arrest under any of the following circumstances: (1) The arrest was lawful, or the peace officer, at the time of the arrest, had reasonable cause to believe the arrest was lawful." Since, as discussed above, the question of reasonable cause in this case is a question that must go to the jury, the application of Pen. Code §847, subd. (b) is not a basis for summary judgment here. Plaintiff shall provide notice of this ruling.
6	Ocampo vs. Nguyen 2024-01431732	Motion for Summary Judgment and/or Adjudication When a defendant seeks summary judgment, it bears the burden of proof by a preponderance of the evidence to establish that an action has no merit, that plaintiff cannot prove an element or some elements of a cause of action, or that a complete defense is established as a matter of law entitling it to judgment. C.C.P. § 437c (p) (2), and Hunter v. Pacific Mechanical Corp. (1995) 37 Cal.App.4th 1282, 1287. If the moving party cannot meet its burden, then the opposing party has no burden to oppose the motion by submitting evidence demonstrating that triable issues of fact exist in the case. Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 840. But if the moving party carries its initial burden, then the party opposing the motion must produce admissible evidence to show that a triable issue of fact, or issues of fact, exists. C.C.P. § 437c (p) (2), and Green